

SENATE BILL 804

By Massey

AN ACT to amend Tennessee Code Annotated, Title 38;
Title 39; Title 40 and Title 67, relative to crime
stoppers programs.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 40, Chapter 35, Part 1, is amended by adding the following new section:

(a) In addition to any fine prescribed by law for a criminal offense, an offender convicted of a felony or misdemeanor offense shall be assessed an additional fine of ten dollars (\$10.00), which must be imposed by all courts with criminal jurisdiction and collected by the clerks of the courts.

(b) The clerk of the court shall collect and forward, on a monthly basis, all fines assessed under subsection (a), less three dollars (\$3.00) per assessment as a service charge to be retained by the clerk, to the state treasury for deposit in the crime stoppers trust fund, to be used as provided in SECTION 2.

SECTION 2. Tennessee Code Annotated, Title 40, Chapter 35, Part 1, is amended by adding the following new section:

(a) As used in this section:

(1) "Crime stoppers organization" means a 501(c)(3) organization, as defined by the 2000 United States Tax Code, with an overseeing board of directors and an executive director or coordinator, that collects and expends donations for rewards to persons who report to the organization information concerning criminal activity, and forwards that information to appropriate law enforcement agencies; and

(2) "Fund" means the crime stoppers trust fund.

(b) There is created in the state treasury a fund known as the crime stoppers trust fund. Moneys in the fund must be used for the purpose of grant administration to fund crime stoppers programs within political subdivisions of this state.

(c) The fund must be administered as follows:

(1) The money may be invested but must be accounted for separately with separate accounting for the fund's principal and income;

(2) The crime stoppers trust fund must contain state-appropriated moneys and fees and fines assessed in accordance with SECTION 1;

(3) Moneys in the fund must not revert to the general fund of the state, but must remain available to be used as provided for in this section;

(4) Interest accruing on fund deposits and investments must be credited to the fund, must not revert to the general fund, and must be carried forward into each subsequent fiscal year;

(5) Moneys in the fund must be invested by the state treasurer in accordance with § 9-4-603; and

(6) The state treasurer is authorized to expend moneys from the fund to fund costs and expenses incurred by the department of the treasury for the administration of the fund and for the review and approval of contract service providers pursuant to § 55-10-426.

(d) The proceeds of the fine imposed by SECTION 1 must be deposited in a separate account in the trust fund, and within that account the funds must be designated according to the judicial district in which they were collected. The funds in this account must be distributed as provided in subdivision (e)(2).

(e)

(1) The state treasurer is the disbursing authority for distribution of funding to crime stoppers organizations, upon their application to the department of safety for funding assistance.

(2) Funds deposited in the trust fund pursuant to subsection (d) must be disbursed as provided in this subdivision (e)(2). A crime stoppers organization may apply to the department for a grant from the funds collected in the county in which the organization is located. A grant may be used only to support crime stoppers, as provided in subsection (f). Only one (1) program is eligible for support within a county. In order to aid the state treasurer in determining eligibility, the department of safety shall furnish the treasurer with a schedule of authorized crime stoppers organizations and shall update the schedule as necessary. The state treasurer shall award grants to crime stoppers organizations from available funds and shall distribute funds as equitably as possible, based on amounts collected within each county, when more than one (1) county is contained within a judicial district.

(f) A crime stoppers organization that is awarded a grant under this section may use such funds:

(1) To purchase and distribute promotional items to increase public awareness of and to educate the public about crime stoppers;

(2) To pay rewards for tips that result in any of the following:

(A) An arrest;

(B) The recovery of stolen property;

(C) The recovery of illegal narcotics;

(D) The recovery of the body of a homicide victim;

(E) The recovery of a human trafficking victim or a missing person connected to criminal activity;

(F) The recovery of an illegal firearm or an illegal weapon on a kindergarten through grade twelve (K-12) school campus;

(G) The prevention of a terrorist act; or

(H) The solving and closing of a criminal case involving a homicide or other violent felony offense that remains unsolved for one (1) year or more after being reported to a law enforcement agency and that has no viable and unexplored investigatory leads; or

(3) For the administrative or operating expenses of the crime stoppers organization; provided, however, that no more than twenty-five percent (25%) of the funds awarded may be used for administrative or operating expenses.

(g) The state treasurer is authorized to promulgate rules relative to:

(1) The investment of money in the fund;

(2) The administration, processing, and payment of funds to local governments;

(3) Criteria for organizations to apply for funding from the crime stoppers trust fund in order to aid local law enforcement as provided in this section;

(4) The limits of funding to be distributed to local government units based on a pro rata share of grants made available through the fund pursuant to subdivision (e)(1), and criteria for the equitable distribution of funds available pursuant to subdivision (e)(2); and

(5) Provisions for the coordination with appropriate governmental agencies to support and enhance efforts to train the public in crime prevention

methods and in personal safety principles, especially for citizens who live in, work at, or frequent locations with high crime rates.

(h) Each crime stoppers organization that receives a grant under this section shall report annually to the chief clerks of the senate and the house of representatives, the legislative librarian, and the office of legislative budget analysis on the use of grant funds in the preceding fiscal year. The first report is due no later than February 1, 2027, and by each February 1 thereafter.

(i) The fund is subject to examination and audit by the comptroller of the treasury.

SECTION 3. This act takes effect January 1, 2026, the public welfare requiring it.